

STATE OF NEW YORK

8636--B

IN SENATE

January 7, 2026

Introduced by Sen. FERNANDEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Racing, Gaming and Wagering -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the racing, pari-mutuel wagering and breeding law, in relation to permitting requests for self-exclusion from gambling to be made electronically

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Subdivision 2 of section 1344 of the racing, pari-mutuel
2 wagering and breeding law, as added by chapter 174 of the laws of 2013,
3 is amended to read as follows:
4 2. The regulations of the commission shall establish procedures for
5 placements on, and removals from, the list of self-excluded persons,
6 including procedures that allow a person to submit a request pursuant to
7 subdivision one of this section electronically. Such procedures shall
8 ensure parity between electronic and non-electronic requests with
9 respect to record retention and transmission of requests to licensed
10 gaming facilities and mobile sports wagering platforms. Such regulations
11 shall establish procedures for the transmittal to licensed gaming facil-
12 ities of identifying information concerning self-excluded persons, and
13 shall require licensed gaming facilities to establish procedures
14 designed, at a minimum, to remove self-excluded persons from targeted
15 mailings or other forms of advertising or promotions and deny self-ex-
16 cluded persons access to credit, complimentaries, check cashing privi-
17 leges, club programs, and other similar benefits.
18 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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